

		for a vague order “limit[ing] testimony to matters known or reasonably available to Pampanga” is denied. Plaintiff’s request for sanctions is granted. Defendant Pampanga Food Company, Inc. shall pay sanctions in the amount of \$2,060 to plaintiff by June 18, 2026. Defendant’s request for sanctions is granted. Plaintiff Balbino Alvira shall pay sanctions in the amount of \$350 to defendant by June 18, 2026. Civ. Proc. Code § 2023.020. Plaintiff to give notice.
3	Cervantes De Cabrera v. United Exchange Corp., et al. 2025-01479201	<u>Defendant Partners Personnel-Management Services, LLC’s Motion to Compel Arbitration</u> <u>Defendants United Exchange Corp., Eugene Choi and Carol Choi’s Joinder</u> Defendant Partners Personnel-Management Services, LLC (“Partners”) moves for an order compelling arbitration of plaintiff Maria Cervantes de Cabrera’s individual claim, dismissing plaintiff’s class allegations, and staying plaintiff’s nonindividual PAGA claim pending completion of the arbitration. Defendants United Exchange Corp., Eugene Choi and Carol Choi (together, the “United Exchange defendants”) join Partners’ motion. For the following reasons, Partner’s motion is granted, and the United Exchange defendants’ unopposed joinder is granted. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>Existence of arbitration agreement</i> A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056. “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’ (<i>Espejo, supra</i>, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].’ (<i>Condee, supra</i>, at pp. 218–219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence To bear this burden,

the arbitration opponent must offer admissible evidence creating a factual dispute as to the authenticity of their signatures. The opponent need not prove that his or her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent, who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Espejo, supra*, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.)” *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (emphasis in original).

When an opposing party disputes that he or she signed an arbitration agreement electronically, the petitioner has the burden of proving by a preponderance of the evidence that the electronic signature is authentic. *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; *see also Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1067; *Espejo, supra*, 246 Cal.App.4th at 1060 (“[W]e conclude that defendants here met their initial burden by attaching to their petition a copy of the purported arbitration agreement bearing Espejo's electronic signature. Once Espejo challenged the validity of that signature in his opposition, defendants were then required to establish by a preponderance of the evidence that the signature was authentic.”). The burden of authenticating an electronic signature is not great. *Fabian*, 42 Cal.App.5th at 1067.

Partners carried its initial burden by submitting the declaration of Jennifer Rivas. Rivas states she is the Director of Systems and Support for Partners and that she has held that position for six years. Rivas Decl. (ROA 53) ¶ 1. Rivas states Partners is a staffing agency that operates across the country and that Partners placed individuals to work in California for defendant United Exchange Corporation. *Id.* ¶ 4. Rivas states that in her role as Director of Systems and Support, she is familiar with the processing procedures involved for new employee applicants and new hires, including plaintiff, such as collecting and storing employee onboarding records, which include arbitration agreements. *Id.* ¶ 2.

Rivas states she reviewed plaintiff’s personnel file to which Rivas has access in her role as Director of Systems and Support, and that plaintiff’s personnel file shows plaintiff applied for employment with Partners and completed the onboarding documents in May 2024. *Id.* ¶¶ 5-6. Rivas states plaintiff was placed on a temporary work assignment at United Exchange from approximately June 2024 to November 15, 2024. *Id.* ¶ 6.

Rivas states that at the time plaintiff applied for employment, Partners used a software system called Tempworks Enterprise to manage applicant onboarding and record retention. *Id.* ¶ 7. Rivas states Tempworks is a secured software platform and portal that permits applicants and/or employees to access employment-related documents remotely and to sign the documents digitally. *Id.* Rivas states plaintiff used Tempworks to access the onboarding documents by creating a unique personal account by validating her last name and the last 4 digits of her social security number. *Id.* ¶¶ 9-11. Rivas states that at “Mutual Voluntary Agreement for

Individual Arbitration” is one of the documents in the onboarding package that was provided to plaintiff to view, electronically sign and download. *Id.* ¶¶ 14-15. Rivas states plaintiff electronically signed the arbitration agreement on May 1, 2024 by clicking on a signing location and entering her name as her signature. *Id.* ¶¶ 15-16. Rivas states that Exhibit A to her is a true and correct copy of the arbitration agreement plaintiff electronically signed. *Id.* ¶ 15 & Ex. A.

Plaintiff did not submit any evidence with her opposition and in her opposition she does not raise a factual dispute as to the authenticity of her electronic signature. Plaintiff instead argues that defendant did not provide evidence of “system audit logs or IP metadata to authenticate the electronic signature.” *Opp.* (ROA 66) 3:7-10. As stated above, the moving party bears its “initial burden by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature,” and “need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation as provided in rule [3.1330].” *Iyere*, 87 Cal.App.5th at 755. Partners met its initial burden and the burden thus shifted to plaintiff, the party opposing arbitration, to identify a factual dispute as to the agreement's existence. *Id.* Plaintiff, who as noted above did not submit any evidence in opposition to the motion, did not do so.

The court thus finds Partners carried its burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence.

The Federal Arbitration Act applies

Partners argues the Federal Arbitration Act (FAA) applies. The arbitration agreement states: “This Agreement is covered by and made pursuant to the Federal Arbitration Act (the ‘FAA’), 9 U.S.C. § 1 *et seq.*, and shall be construed, interpreted, governed, and entered in accordance with the FAA.” Rivas Decl. (ROA 53) Ex. A (at 2).

“The [Federal Arbitration Act] applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.” *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76; *see also Tuufuli v. West Coast Dental Administrative Services, LLC* (Cal. Ct. App. Jan. 13, 2026) No. B338584, 2026 WL 92021 (same); *Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963 (same); *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355 (“the presence of interstate commerce is not the only manner under which the FAA may apply. . . . [T]he parties may also voluntarily elect to have the FAA govern enforcement of the Agreement”). In addition, plaintiff does not dispute Partners’ argument that the FAA applies. The court finds the FAA applies.

Unconscionability

Plaintiff argues the arbitration agreement is unconscionable. In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening” the FAA’ or California law.” *Id.* at 125; see *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

“Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; see also *OTO*, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” *Armendariz*, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

Plaintiff argues the arbitration agreement is oppressive and surprising because it “was presented as part of the onboarding process, creating a take-it-or-leave it situation with no real opportunity for negotiation.” Opp. (ROA 66) at 3:14-15. Plaintiff submitted no evidence describing the circumstances under which she received the agreement. In addition, the agreement states that signing the agreement is “voluntary,” that arbitration “is not a mandatory condition of [plaintiff’s] employment,” and that plaintiff may “opt out” of the arbitration agreement by submitting a statement to Partners that plaintiff “wish[es] to opt out and not be subject to this Agreement.” Rivas Decl. Ex. A (at 1, 3, 4). That said, the fact remains that the arbitration agreement is a preprinted multipage form agreement provided to plaintiff by her employer as part of the onboarding process. Rivas Decl. ¶ 14. The adhesive nature of the agreement is evidence of some modest degree of procedural unconscionability. *Sanchez*, 224 Cal.App.4th at 403.

As noted above, substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO*, 8 Cal.5th at 129-30. The court focuses

on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the nondrafting party's reasonable expectations. *Id.* at 130.

Plaintiff argues the agreement is substantively unconscionable because it contains a class and representative action waiver, "which is one-sided and favors the employer by stripping collective enforcement mechanisms essential for Labor Code rights," and the waiver is purportedly "not enforceable under California law." Opp. (ROA 66) 3:20-24.

Plaintiff is mistaken. As discussed above, the FAA, and not California law, applies. The class action waiver is therefore enforceable. See, e.g., *Viking River Cruises v. Moriana* (2022), 596 U.S. 639, 651 ("a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party agreed to do so") (italics in original); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); *Evenskaas v. California Transit, Inc.* (2022) 81 Cal.App.5th 285, 297-98.

In addition, while a waiver of nonindividual PAGA claims is unenforceable (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 384; see also *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1118; *Viking River*, 596 U.S. at 662), the agreement here states: "To the extent applicable law prohibits the enforcement of the Class and Representative Action Waiver with respect to representative claims under California's Private Attorney General Act ('PAGA'), California Labor Code § 2698 *et seq.*, such representative claims would not be covered by this Agreement, unless applicable law allows PAGA claims to be arbitrated, then, in such cases, You agree that all PAGA claims shall be subject to individual arbitration under this Agreement." Rivas Decl. (ROA 53) Ex. A (at 1). The agreement accordingly does not waive nonindividual PAGA claims and thus is not substantively unconscionable on that basis.

Plaintiff contends the agreement is substantively unconscionable because it encompasses individual PAGA claims, which plaintiff asserts the law does not allow. Plaintiff is mistaken. The California Supreme Court has held that a plaintiff's individual PAGA claim(s) can be compelled to arbitration. *Adolph*, 14 Cal.5th at 1119 ("*Viking River* requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA").

Plaintiff argues the agreement's provisions regarding forum selection, fee allocation and discovery are substantively unconscionable because they allegedly are vague "and potentially limit Plaintiff's ability to vindicate statutory rights." Opp. at 4:3-6.

Plaintiff further argues the agreement does not “ensure adequate discovery or procedural safeguards.” *Id.*

The agreement is not vague with respect to forum selection, fees or discovery, and it provides for adequate discovery. The agreement states the “arbitration shall take place in California, in the county in which [the employee] regularly perform(ed) [their] work.” Rivas Decl. (ROA 53) Ex. A (2). The agreement states “[t]he Company will pay the arbitrator’s fees and any other fees or expenses required by law.” *Id.* The agreement states “[t]he parties shall be entitled to engage in reasonable discovery (which is the mutual exchange of information, evidence, and/or known facts of a case or dispute) subject to applicable law current at the time of the proposed arbitration.” *Id.* See *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 505 (“*Armendariz* stands for the principle that an arbitration agreement required as a condition of employment must generally permit employees sufficient discovery to adequately arbitrate any statutory claims”). Plaintiff does not identify any procedural safeguards purportedly missing from the agreement. In addition, the agreement states:

Arbitration Procedures. All arbitrations shall be conducted by a single neutral arbitrator through a separate third-party arbitrator and/or arbitration entity to be mutually agreed upon by the Parties. The arbitrator shall be selected by mutual agreement of both [the employee] and the Company or in accordance with then-applicable rules of the arbitration entity mutually selected by [the employee] and the Company. The arbitration shall be governed by the arbitrator’s or arbitration entity’s then-current rules and procedures, subject to applicable law.

Rivas Decl. Ex. A (at 2).

Plaintiff next argues the agreement “allows third-party beneficiaries, such as affiliates and clients, to enforce arbitration, creating an imbalance that benefits the employer and its associates without reciprocal advantages for employees.” Opp. at 4:8-9.

The agreement states:

Third-Party Enforcement. Any Affiliate, Client, or Customer of the Company shall be deemed a third-party beneficiary under this Agreement for purposes of being able to enforce this Agreement with regard to any claims between [the employee] and such Affiliate of the Company, and such Affiliate may enforce this Agreement to the maximum extent permissible by law or equity, pursuant to any one or combination of legal or equitable theories including, but not limited to, agency, equitable estoppel, and/or third party beneficiary, as applicable.

Rivas Decl. Ex. A (at 2). Plaintiff does not cite any law holding that provisions of this nature render an arbitration agreement substantively unconscionable. Moreover, some cases hold that nonsignatories may compel arbitration under some circumstances. See, e.g., *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 785-86 (“Courts recognize exceptions to the general rule which allow

nonsignatories to compel arbitration of a dispute arising out of the scope of the agreement”).

Plaintiff next argues her claims for noncompliant wage statements and personnel file access statutory rights are “not suited for arbitration” because “[t]hese rights are designed for summary enforcement.” Opp. at 4:13-15. Plaintiff cites no legal authority supporting this argument and, more specifically, no legal authority holding that these claims may not be compelled to arbitration when the FAA applies.

The class allegations are dismissed without prejudice

The arbitration agreement contains a class action waiver that states, in relevant part: “You hereby voluntarily waive any right to participate, in any manner, in a class, collective, or representative action.” Rivas Decl. Ex. A (at 1).

As discussed above, the FAA applies. The class action waiver is therefore enforceable. *See, e.g., Viking River Cruises v. Moriana* (2022), 596 U.S. 639, 651 (“a party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party *agreed to do so*”) (italics in original); *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352 (holding class action waivers are enforceable under FAA and California rule to contrary preempted); *Evenskaas v. California Transit, Inc.* (2022) 81 Cal.App.5th 285, 297-98. The class allegations are dismissed without prejudice.

The United Exchange defendants’ joinder is granted

As stated above, the United Exchange defendants join Partners’ motion. ROA 61. Plaintiff did not oppose the joinder. The joinder is granted.

Partners’ Request for Judicial Notice (ROA 50) is denied as the document was not material to the disposition of the motion.

The superior court action is stayed

The superior court action, including the nonindividual PAGA claim(s), is stayed pending completion of the arbitration. An ADR Review hearing is scheduled for December 3, 2026 at 9:00 a.m. in Department CX105. The parties are ordered to file a joint ADR Review hearing statement at least five court days before the hearing.

Defendant Partners Personnel-Management Services, LLC to give notice.

Status Conference

The court has reviewed the parties’ joint status conference statement filed May 21, 2026 (ROA 74). In light of the court’s concurrent ruling on defendant Partners Personnel-Management Services, LLC’s motion to compel arbitration, and the United Exchange defendants’ joinder therein, the status conference

		scheduled for May 28, 2026 at 2:00 p.m. in Department CX105 is vacated. Clerk to give notice.
4	Corona v. West American Rubber Company, LLC 2024-01383622	<u>Plaintiff's Motion for Final Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers filed, including the Supplemental Tran Declaration filed May 20, 2026 (ROA 112), in support of plaintiff's motion for final approval of a \$1,750,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff; \$583,333.33 for attorneys' fees; \$23,299.52 for litigation costs (see No. 1 below); \$6,500.00 for settlement administration costs; and \$100,000.00 total PAGA penalties (\$75,000.00 to the LWDA). 1. In the January 15, 2026 order (ROA 83), the court stated that at final approval plaintiff's counsel should explain the reasonableness of the seemingly high BRG charges. Plaintiff's counsel has not done so. The court accordingly deducts \$6,302.00 in costs for 13.70 hours spent by BRG personnel (\$460 per hour) "prepar[ing] data." Moen Decl. (ROA 104) Ex. 4. The court also will not award "anticipated" costs (\$43.86). 2. The brief contains apparently erroneous and at best unclear explanation and information regarding the end date of the class period and the class members to whom notice was sent. See e.g., Brief (ROA 106) at 1 n.2, 3:12-20, 5:14-15. The Tran Declaration, however, clearly explains the class period end date and the notice process and the class members to whom notice was sent, and provides sufficient information for the court to understand and evaluate the class period end date and the notice process and to determine that both are adequate. Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a copy of the opt-out notice received by the settlement administrator (Tran Decl. (ROA 96) Ex. B) sufficiently unredacted that the name of the class member who requested exclusion is visible. Other personal information need not be unredacted. The class member should also be identified by name in the proposed order and judgment. Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a revised proposed order and judgment consistent with this ruling. The final accounting hearing is scheduled for <u>March 11, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final accounting report at least 9 court days before the final accounting hearing regarding the status of the settlement administration. The